

LEAVE FOR FAMILY & MEDICAL PURPOSES

This regulation is intended to be consistent with the Family & Medical Leave Act (FMLA), 29 U.S.C. § 2601 et seq., and provides the procedures by which leave taken pursuant to the FMLA ("FMLA leave") is processed and approved. This regulation may run concurrent with other applicable School Division leave regulations.

- A. To be eligible for FMLA leave, an employee must have worked for Loudoun County Public Schools (LCPS) for at least 12 months and for at least 1,250 hours immediately preceding the requested leave period.
- B. An eligible employee is entitled to 12 work weeks of unpaid FMLA leave during a 12-month period. FMLA is calculated on a rolling backward calendar method - a 12-month period measured backward from the date the employee uses any FMLA leave.
- C. FMLA leave may be taken by any eligible employee for one or more of the following reasons as described below:
 - 1. Parental Leave - The birth of a child, or because of the placement of a child with the employee for adoption or foster care. Leave in this category must be taken within 12 months of the date of the birth or placement.
 - 2. The serious health condition, illness or injury of an employee that makes the employee unable to perform the essential functions of their position.
 - 3. To care for the eligible employee's spouse, child or parent who has a serious health condition, illness, or injury.
 - 4. Military Exigency - because of any qualifying exigency as defined by the Department of Labor in its regulations, arising out of the fact that the eligible employee's spouse, child, parent, or next of kin is on covered active duty (or has been notified of an impending call or order to covered active duty), and includes caring for a covered servicemember, covered member of the military active duty or covered member of a reserve component of the Armed Forces in preparation for a deployment or as the result of a deployment.
- D. FMLA leave may be taken consecutively, intermittently or on a reduced schedule, or a combination.
- E. Intermittent FMLA leave or FMLA leave taken on a reduced schedule may be taken, if medically necessary, as described in the FMLA and its implementing regulations. An eligible employee who is approved for intermittent FMLA leave or FMLA leave taken on a reduced schedule may be required to transfer temporarily to an alternative position, with the same pay and benefits, if it is deemed necessary in order to accommodate the intermittent leave or reduced schedule. Upon the conclusion of the period during which the eligible employee is on intermittent leave or a reduced schedule, the transferred employee will return to their original assignment. Intermittent FMLA leave is counted in 15 minute

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increments.

1. Intermittent FMLA Leave is to be reported to the Department of Human Resources & Talent Development (HRTD) Leave & Disability Programs office within 5 days of the end of the pay period, using the Intermittent Leave Reporting Form.

2. Intermittent FMLA leave can be approved for up to 12 consecutive calendar months. If intermittent leave is required past 12 months, the employee must meet eligibility requirements and submit updated leave request forms.

F. Employees on FMLA leave are required to use sick leave during their approved FMLA leave.

G. FMLA and all paid leave will run concurrently, including Parental Paid and/or Medical Paid Leave. Once paid leave is exhausted, any remaining FMLA leave is unpaid. LCPS shall provide benefits throughout the FMLA leave period under the same conditions as during regular employment. If the employee elects to not return to work, LCPS may recover these benefits upon demand.

H. Premiums will be collected from the paycheck while on FMLA leave. If the employee is in leave without pay status, premiums may be collected when they return to a paid status or billed by the Department of Business & Finance.

I. Employees requesting FMLA leave must submit medical documentation utilizing the FMLA form provided by the HRTD Leave & Disability Programs office or by providing written documentation from a medical provider with the required information. The form may be requested via email, telephone, fax or electronically using the Leave & Disability Programs website.

J. If, after review of the submitted documentation, the documentation is deemed insufficient, the Leave & Disability Programs office may require additional information. An employee shall have up to 7 calendar days to provide this additional information.

K. If Leave & Disability Programs has reason to doubt the validity of the certification for FMLA leave, the employee may be required to undergo an evaluation for an opinion from a provider designated or approved by the Leave & Disability Programs office at LCPS' expense. If the second opinion differs from the original documentation, a third opinion may be required. The provider for the third opinion will be jointly approved by the Leave & Disability Programs office and the employee. The third opinion will be considered binding and will be at LCPS' expense.

L. An employee may be required to provide certifications up to every 30 days while on approved FMLA leave.

M. LCPS may designate a request for paid or unpaid leave as FMLA leave if, based on

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medical documentation provided by the employee, it is deemed within five (5) business days of the leave request that it is for an FMLA-qualifying reason. LCPS will provide written notice to the employee when such a designation is made. Leave may be retroactively designated FMLA leave up to 60 days with appropriate notice to the employee.

N. In any situation where a need for FMLA leave is foreseeable (e.g., birth of a child, adoption or foster care placement, planned medical treatment for the employee or the employee's spouse, child or parent), the employee must request leave 30 days prior to the anticipated first day of absence.

O. In any situation where a need for FMLA leave is unforeseeable, the employee should apply for leave as soon as practicable.

P. An employee who takes FMLA leave for their own serious health condition, illness or injury or for the birth of a child must present a return-to-work release from their healthcare provider prior to their return to work. Failure to provide this documentation may result in a delay in the employee's return, during which they will continue to be charged leave, or may face other HRTD action affecting their employment status.

Q. Additional Rules for Military Caregivers. An eligible employee may take additional leave for exigency leave and leave for a serious health condition, illness or injury.

1. Short-notice deployment (leave permitted up to seven days if the military member receives seven or less days' notice of a call to active duty);

2. Military events and related activities;

3. Certain temporary childcare arrangements and school activities (but not ongoing childcare);

4. Financial and legal arrangements;

5. Counseling by a non-medical counselor;

6. Rest and recuperation (up to five (5) days when the member is on temporary rest and recuperation leave) and

7. Certain activities related to care of the military member's parent who is incapable of self-care and post-deployment military activities.

R. Employees may take up to 26 weeks of FMLA military caregiver leave in a 12-month period on a per-covered service member, per-injury basis. The leave begins as of the employee's first date of absence to care for the covered service member. This leave may be taken only once in a 12-month period, and may be taken consecutively, intermittently or on a reduced schedule basis. Once the 12-month period has exhausted, any unused

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portion of the 26 weeks is forfeited for that particular servicemember.

S. Instructional employees (those whose principal function is to teach and instruct students in a class, a small group, or an individual setting such as teachers, athletic coaches, driving instructors and special education assistants such as signers for the hearing impaired) who begin leave during certain periods of the school year may be required to follow special rules. Employees who begin FMLA leave more than five (5) weeks prior to the end of the school year or semester and will be absent at least two (2) weeks, may be required to have their leave extended until the end of the school year or semester if they would be returning to work during the last two (2) weeks of that school year or semester. This does not include teacher assistants, behavioral assistants, auxiliary personnel or other primarily non-instructional employees.

T. LCPS posts and maintains, in conspicuous places on its premises where notices to employees and applicants for employment are customarily posted, a notice that has been prepared or approved by the Secretary of the Department of Labor, which explains pertinent provisions of the FMLA and provides information about how employees can file complaints with the Department of Labor.

Issued: 9/14/93

Revised: 12/20/94, 6/10/97, 7/1/97, 1/22/01

Current Revision: 08/22/23